

1 ENGROSSED SENATE
2 BILL NO. 1502

By: Daniels of the Senate

3 and

4 Lepak of the House

5
6 An Act relating to long-term care; amending 63 O.S.
7 2021, Sections 1-879.2b and 1-879.2c, as amended by
8 Section 1, Chapter 487, O.S.L. 2025 (63 O.S. Supp.
9 2025, Section 1-879.2c), which relate to the
10 Alzheimer's Dementia and Other Forms of Dementia
11 Special Care Disclosure Act; eliminating the
12 Alzheimer-Dementia Disclosure Act Advisory Council;
conforming language; updating statutory language; and
providing an effective date.

13 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

14 SECTION 1. AMENDATORY 63 O.S. 2021, Section 1-879.2b, is
15 amended to read as follows:

16 Section 1-879.2b. As used in the Alzheimer's Dementia and Other
17 Forms of Dementia Special Care Disclosure Act:

18 1. "Special care" means care that is provided to persons with a
19 diagnosis of probable Alzheimer's dementia or other forms of
20 dementia by an entity that provides such care;

21 2. "Department" means the State Department of Health; and

22 3. "Dementia" means the impaired ability to remember, think, or
23 make decisions that interferes with a person's everyday activities;
24 ~~and~~

1 ~~4. "Alzheimer Dementia Disclosure Act Advisory Council" shall~~
2 ~~mean the advisory council created in Section 3 of this act.~~

3 SECTION 2. AMENDATORY 63 O.S. 2021, Section 1-879.2c, as
4 amended by Section 1, Chapter 487, O.S.L. 2025 (63 O.S. Supp. 2025,
5 Section 1-879.2c), is amended to read as follows:

6 Section 1-879.2c. A. 1. Pursuant to rules promulgated under
7 the provisions of the Alzheimer's Dementia and Other Forms of
8 Dementia Special Care Disclosure Act, any nursing facility,
9 residential care facility, assisted living ~~facility~~ center, adult
10 day care center, continuum of care facility, or special care
11 facility that publicly advertises, intentionally markets, or
12 otherwise engages in promotional campaigns for the purpose of
13 communicating that such facility offers care, memory care, or
14 treatment methods within the facility that distinguish it as being
15 especially applicable to or suitable to persons with Alzheimer's
16 dementia or other forms of dementia diagnoses shall disclose the
17 type of care, memory care, or treatment provided that distinguishes
18 it as being especially applicable to or suitable for such persons.

19 2. The disclosure shall be made using a form developed by the
20 State Department of Health and shall be made to:

- 21 a. the Department,
22 b. any representative of a person with Alzheimer's
23 dementia or other form of dementia who is considering
24

1 placement within a special care unit, program, or
2 facility, and

3 c. the State Long-Term Care Ombudsman.

4 3. A referral agency, when disclosing documents pursuant to
5 Section 1-866.2 of this title, shall provide to any representative
6 of a person who has notified the referral agency of a diagnosis of
7 Alzheimer's dementia or other form of dementia and who is
8 considering placement within a special care unit, program, ~~memory~~
9 ~~care~~, or facility, electronic or physical access to the form for
10 each facility. The Department ~~of Health~~ shall maintain a public
11 searchable database of forms. If no such form is available from the
12 Department ~~of Health~~, this section shall not apply. Neither a
13 facility nor a referral agency shall be liable for the actions or
14 inactions of the other pursuant to this section.

15 4. The facility shall submit the disclosure form to the
16 Department prior to entering into any agreement to provide care or
17 services.

18 5. The Department shall examine each disclosure for
19 completeness and accuracy at the time the disclosure is submitted to
20 the Department.

21 6. The Department shall review the most recent disclosure in
22 the Department's records during the facility's regular inspection to
23 verify that the disclosure is current and that the services
24

1 described in the disclosure are provided to residents as described
2 in the disclosure.

3 B. The information disclosed as required by this section shall
4 include the following areas:

5 1. A written description of the special care ~~unit~~ unit's,
6 ~~program~~ program's, or facility's overall philosophy and mission as
7 it relates to the needs of residents with Alzheimer's dementia or
8 other forms of dementia;

9 2. The process and criteria for placement in, or transfer or
10 discharge from, the unit, program, or facility;

11 3. The process used for assessment, establishment, and
12 implementation of a resident plan of care, as it relates to
13 Alzheimer's dementia and other forms of dementia, including the
14 method by which the plan evolves, the frequency of assessment, and
15 how the facility will respond to changes in the condition of the
16 resident;

17 4. Staff-to-resident ratios, staff training and continuing
18 education that are in addition to all regularly prescribed training
19 and are commensurate with the need for increased care and
20 supervision for residents with Alzheimer's dementia or other forms
21 of dementia;

22 5. The physical environment and design features appropriate to
23 support the functioning of cognitively impaired residents;

24

1 6. The types and frequency of resident activities designed for
2 residents with Alzheimer's dementia or other forms of dementia and
3 descriptions of those therapeutic activities designed to address
4 cognitive function and engage residents with varying stages of
5 dementia;

6 7. The involvement of families in care planning and other
7 aspects of care, and the availability of family support programs;

8 8. The fees for care and any additional fees; and

9 9. Any accreditations or certifications issued to the facility
10 related to the care and services provided to residents with
11 Alzheimer's dementia or other forms of dementia.

12 C. The Department, ~~with input from the Alzheimer Dementia~~
13 ~~Disclosure Act Advisory Council,~~ shall develop a standardized
14 disclosure form. Any change in the information initially submitted
15 by the facility or other entity shall be reported to the Department
16 at the time the change is made.

17 D. The provisions of this section shall not be construed to
18 preclude a facility without a special care unit or program from
19 admitting a person with Alzheimer's dementia or other forms of
20 dementia.

21 E. The State Commissioner of Health, ~~with input from the~~
22 ~~Alzheimer Dementia Disclosure Act Advisory Council,~~ shall promulgate
23 rules to effectuate the provisions of the Alzheimer's Dementia and
24 Other Forms of Dementia Special Care Disclosure Act.

1 F. ~~There is hereby created the Alzheimer-Dementia Disclosure~~
2 ~~Act Advisory Council. The Council shall make recommendations to the~~
3 ~~State Commissioner of Health regarding the disclosure form and rules~~
4 ~~promulgated pursuant to the Alzheimer's Dementia and Other Forms of~~
5 ~~Dementia Special Care Disclosure Act.~~

6 1. ~~The Council shall consist of nine (9) members to be~~
7 ~~appointed by the State Commissioner of Health for such terms as he~~
8 ~~or she chooses. The members shall be individuals who have knowledge~~
9 ~~and expertise in the field of memory care or individuals who are~~
10 ~~consumer representatives directly impacted by memory care services,~~
11 ~~provided that neither the members with knowledge and expertise in~~
12 ~~the field nor the members who are consumer representatives shall~~
13 ~~comprise more than two-thirds (2/3) of the total membership. The~~
14 ~~members who are consumer representatives shall be individuals with~~
15 ~~immediate family members who have received or are currently~~
16 ~~receiving memory care services in Oklahoma and shall not be~~
17 ~~employees or board members of any facilities or entities subject to~~
18 ~~the Alzheimer's Dementia and Other Forms of Dementia Special Care~~
19 ~~Disclosure Act.~~

20 2. ~~The members of the Council shall serve without compensation.~~

21 3. ~~The Council shall conduct an organizational meeting at a~~
22 ~~date and location to be chosen by the Commissioner and as frequently~~
23 ~~thereafter as necessary to perform the duties imposed upon it. A~~
24 ~~majority of the members present shall constitute a quorum.~~

1 ~~4. Staff assistance for the Council shall be provided by the~~
2 ~~staff of the State Department of Health.~~

3 ~~G.~~ If a facility described in paragraph 1 of subsection A of
4 this section, or any individual employed or contracted by such
5 facility, violates any of the provisions of the Alzheimer's Dementia
6 and Other Forms of Dementia Special Care Disclosure Act or the rules
7 promulgated pursuant thereto, the facility shall be subject to the
8 notice and enforcement provisions established for the facility's
9 license by the Department.

10 ~~H.~~ G. Any facility that offers specialized memory or dementia
11 care through a specific unit or program shall post:

12 1. The disclosure form, including the information required to
13 be included by this section, on the facility's website; and

14 2. A poster, in a conspicuous location in the special care
15 unit, program, or facility where care is provided for persons with
16 Alzheimer's dementia or other forms of dementia, stating that if
17 such persons or their representatives were not given a copy of the
18 disclosure form, they may file a complaint with the Consumer
19 Protection Unit of the Office of the Attorney General.

20 ~~I.~~ H. The Department shall establish a website with a list of
21 those facilities that have filed a disclosure form pursuant to the
22 Alzheimer's Dementia and Other Forms of Dementia Special Care
23 Disclosure Act. The website shall contain a link to the submitted
24 disclosure form and a table containing items from the disclosure

form, including staffing ratios, staff training, special programming and activities, and accreditations or certifications.

SECTION 3. This act shall become effective November 1, 2026.

Passed the Senate the 9th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the ____ day of _____,
2026.

Presiding Officer of the House
of Representatives